

**CALIFORNIA AUTOMOBILE INSURANCE COMPANY and Subrogee of WAYNE
MARSH vs. CITY OF VALLEJO
Case No. CU23-02854**

Motion for Summary Judgment, or in the Alternative, Summary Adjudication

TENTATIVE RULING

The motion for summary adjudication of the cause of action for inverse condemnation filed by the CITY OF VALLEJO is granted.

The CITY has established, as a matter of law, that it did not plant or direct the planting of the tree that fell on the residence of plaintiff's insured. The facts are undisputed that the tree was 80 to 100 years old and pre-existed the development of the parcel on which the tree was located. Therefore, the court cannot find, with respect to the tree, that the CITY took affirmative action to further a public project that caused injury to property, as required to impose liability for inverse condemnation. (See *Mercury Casualty Co. v. City of Pasadena* (2017) 14 Cal.App.5th 917).

Plaintiff contends that the public improvement upon which inverse liability may be based was not just the tree but the entire parcel that included the tree. However, the tree was in existence long before the development of the property. The fact that the tree was noted on maps or plans submitted to the CITY did not render it a feature designed and constructed by the CITY.

Because the court finds the tree was not a public improvement, the court finds that no public improvement caused the damage to the residence of plaintiff's insured.

Plaintiff does not contend that there is any liability for inverse condemnation based on the maintenance plan for the CITY'S trees, including the tree that fell on the residence of plaintiff's insured. Therefore, the adequacy of the CITY'S maintenance plan is irrelevant.

Given that plaintiff conceded the motion for summary adjudication of the cause of action for dangerous condition of property, the court's ruling granting the motion for summary adjudication of the cause of action for inverse condemnation concludes this case. Summary judgment shall be entered in favor of defendant CITY OF VALLEJO.
